

Amendment No. 2 to HB2358

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 1921*

House Bill No. 2358

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 71, Chapter 5, Part 12, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Child care and development fund" or "CCDF" means the federal child care and development fund established pursuant to 45 CFR 98;

(2) "Department" means the department of human services;

(3) "Smart steps program" means the state child care assistance program administered by the department; and

(4) "Temporary assistance for needy families program" or "TANF" means the federal temporary assistance for needy families program established pursuant to 45 CFR Part 260.

(b) The department shall annually publish on the department's website a report on the temporary assistance for needy families program's and the child care and development fund's balances and expenditures. The report must include:

(1) Expenditures in the prior fiscal year by expense category and funding source;

(2) Obligated balances by expense category and funding source;

(3) Any unobligated balance, including the balance of the TANF rainy-day reserve;

(4) A detailed accounting of all expenditures counted towards the fifteen-percent limitation on administrative expenditures established in 42 U.S.C. § 604(b); and

(5) The number of children served in the smart steps program during the prior fiscal year, disaggregated by funding source, including TANF funds, CCDF funds, and any other funding source utilized by the department.

(c) The department is authorized to promulgate rules to effectuate this section.

The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.